

26PSCV00989 26PSCV00989

County: los-angeles

Division: Civil Law and Motion

Department: H

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Case Number: 26PSCV00989 Hearing Date: July 28, 2026 Dept: H

Zhu, et al. v. Zhang, et al., Case No. 26PSCV00989

ORDER ON MOTIONS TO QUASH

1. The hearing on Defendants Lang Zhang aka Anthony Zhang aka Zhang Lang, Central Trading Corp., RDD Freight International (LA) Inc., SZ Properties, LLC, U.S. Discount Center Corp., Sierra Home Material Trade Inc., and Central 55 Investment LLC's Amended Motion to Quash or in the Alternative to Modify Plaintiffs' Deposition Subpoena to First Credit Bank for Production of Business Records is CONTINUED to October 27, 2026, at 9:00 a.m. [see below].

2. The hearing on Defendants Lang Zhang aka Anthony Zhang aka Zhang Lang, Central Trading Corp., RDD Freight International (LA) Inc., SZ Properties, LLC, U.S. Discount Center Corp., Sierra Home Material Trade Inc., and Central 55 Investment LLC's Amended Motion to Quash or in the Alternative to Modify Plaintiffs' Deposition Subpoena to East West Bank for Production of Business Records is CONTINUED to October 27, 2026, at 9:00 a.m. [see below].

Background

Plaintiffs Bing Feng Zhu aka Benie Zhu ("Zhu"), Richard Huang ("R. Huang"), Chun Xia Huang ("C. Huang"), Yu Chen ("Chen"), and Gang Zhou ("Zhou") (together, "Plaintiffs") allege as follows:

Plaintiffs collectively hold a 50% membership interest in Central 55 Investment, LLC ("C55"); Lang Zhang aka Anthony Zhang aka Zhang Lang ("Zhang") holds the remaining 50% membership interest. On or about July 8, 2019, Plaintiffs and Zhang executed the Central 55 Operating Agreement ("Operating Agreement"), signifying that Plaintiffs had a 50% interest in C55 and that Zhang also had a 50% interest. The Operating Agreement gave Zhang 51% of voting power, provided that the business and affairs of C55 would be managed by three managers: Zhang, Zhu and Chen and required that every decision for C55 be approved by all three managers. The parties agreed that Zhang would be the responsible party to provide detailed accounts for Plaintiffs' investment. Zhang has engaged in self-dealing and has lent monies from C55 to various entities owned and controlled by him, including Central Trading Corp. ("CTC"), RDD Freight International (LA) Inc. ("RDD"), SZ Properties, LLC ("SZ"), U.S. Discount Center Corp. ("U.S. Discount") and Sierra Home Material Trade Inc. ("Sierra").

On March 17, 2026, Plaintiffs filed a complaint, asserting nine causes of action against Zhang, CTC, RDD, SZ, U.S. Discount, Sierra and Does 1-25 and Nominal Defendant C55, including causes of action for fraud, conversion, derivative action, and breach of fiduciary duty.

On May 1, 2026, C55 and Zhang filed a cross-complaint, asserting four causes of action against Zhu, R. Huang, C. Huang, Chen Zhou, and Roes 1-20, including for breach of contract and breach of fiduciary duty.

A Case Management Conference and an Order to Show Cause Re: Failure to File Proof of Service are set for August 13, 2026.

1. Motion to Quash Re: First Credit Bank

Legal Standard

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).) "The following persons may make a motion pursuant to subdivision (a): (1) A party. (2) A witness . . ." (Code Civ. Proc., § 1987.1, subd. (b).)

In making an order pursuant to section 1987.1, "the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).)

Discussion

Zhang, CTC, RDD, SZ, U.S. Discount, Sierra, and Nominal Defendant C55 (collectively together, "Defendants") move the Court, per Code of Civil Procedure section 1987.1, for an order quashing, or in the alternative modifying, the deposition subpoena issued by Plaintiffs on First Credit Bank.

Attorney Mark John Tundis ("Tundis") represents that a copy of the subject subpoena has been attached as Exhibit 1 to his declaration; however, no exhibits have been attached. Accordingly, the Court will continue the hearing on the motion, to October 27, 2026, at 9:00 a.m.

Defendants' counsel is directed to file and serve a supplemental declaration, limited to providing the Court with a copy of the subject subpoena, no later than 9 court days prior to the continued hearing date.

2. Motion to Quash Re: East West Bank

Legal Standard

See Motion #1.

Discussion

Defendants move the Court, per Code of Civil Procedure section 1987.1, for an order quashing, or in the alternative modifying, the deposition subpoena issued by Plaintiffs on East West Bank.

Again, Tundis represents that a copy of the subject subpoena has been attached as Exhibit 1 to his declaration; however, no exhibits have been attached. Accordingly, the Court will continue the hearing on the motion, to October 27, 2026, at 9:00 a.m.

Defendants' counsel is directed to file and serve a supplemental declaration, limited to providing the Court with a copy of the subject subpoena, no later than 9 court days prior to the continued hearing date.